

TENTATIVE RULINGS

FOR: June 09, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBlla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

**** All matters originally set in Dept. B will be heard in Dept. A ****

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Estate of Joan May Blackman

26PR000093

PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY

TENTATIVE RULING: The Petition is GRANTED. Michael Torr is appointed as probate referee. The matter is set for a Status Hearing Re: Final Distribution on June 09, 2027, at 8:30 a.m. in Dept. B. The Status Hearing may be vacated or continued without appearances needed if, prior thereto, the personal representative files a petition for an order for final

distribution or a report of status of administration pursuant to Probate Code section 12200. The clerk is directed to provide notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Berenice Montelongo v. Walsh Vineyards Management, Inc.

25CV000047

MOTION FOR ORDER COMPELLING ARBITRATION AND STAYING THE ACTION OF PLAINTIFF BERENICE MONTELONGO

TENTATIVE RULING: The motion is GRANTED. Plaintiff's Non-Individual PAGA Claims (defined below) are ordered severed from her other claims. Plaintiff is ordered to arbitrate all of her claims, excepting her Non-Individual PAGA Claims. The action is STAYED pending resolution of said arbitration. The Case Management Conference set for June 9, 2026 is VACATED. The matter is set for a Status Conference on October 6, 2026, at 8:30 a.m. in Dept. B.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

Defendant Walsh Vineyards Management, Inc. (Walsh) moves for an order compelling arbitration of this case on grounds that the parties agreed to arbitrate the instant dispute. Walsh further moves for an order staying those of Plaintiff's Private Attorneys General Act (PAGA) claims relating to alleged acts and omissions effecting employees other than Plaintiff (Non-Individual PAGA Claims) pending completion of arbitration.

Walsh's Request for Judicial Notice is DENIED in its entirety. The subject documents are not relevant to the Court's resolution of the issues presented. (See *In re Tobacco Cases, II*, JCCP 4042 (2004) 123 Cal.App.4th 617, 626 [“Although a court may take judicial notice of a variety of matters [citation], only relevant material may be noticed.” [Citation.]”])

B. LEGAL BACKGROUND

A proceeding to compel arbitration is, in essence, a suit in equity to compel specific performance of a contract. (*California Teachers Assn. v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399.) On a petition to compel arbitration, supported by prima facie evidence of a written agreement to arbitrate the underlying controversy, the court must determine whether the agreement exists and, if any defense to its enforcement is raised, whether the agreement is enforceable. (*Rosenthal v. Great Western Financial Sec. Corp.* (1996) 14 Cal.4th 394, 413 (*Rosenthal*)). The moving party bears the burden of proving the existence of the agreement by a preponderance of the evidence. (*Ibid.*) The opposing party bears the burden of producing evidence of and proving (by a preponderance) any fact necessary to any defense raised. (*Ibid.*)

C. LEGAL ANALYSIS

1. Walsh Makes a Prima Facie Showing of a Binding Agreement to Arbitrate All of Plaintiff's Claims Other than Non-Individual PAGA Claims

Walsh presents evidence that it and Plaintiff entered into that certain Arbitration Agreement attached as Exhibit A to the Declaration of Ruben Flores (Flores Decl.).¹ Plaintiff previously conceded that she signed the Arbitration Agreement as part of her onboarding process. (See Plaintiff's Opposition to Defendant's Motion to Compel Arbitration and Staying the Action filed April 3, 2026, at 2:12-14.)

The Court finds that the scope of claims subject to arbitration pursuant to the Arbitration Agreement is broad and encompasses all of Plaintiff's claims against Walsh in the instant action, except for Non-Individual PAGA Claims, which are expressly excluded pursuant to Section 2, subdivision (vi).

Based on the foregoing, the Court finds that Walsh has carried its initial burden of proving, by a preponderance of the evidence, an agreement to arbitrate each of Plaintiff's claims, except for Non-Individual PAGA Claims. (*Rosenthal, supra*, 14 Cal.4th at 413.)

2. Walsh Has Not Waived the Right to Arbitrate

Through the Opposition, Plaintiff argues that Walsh waived its right to compel arbitration. (See *id.* at 8:4, *et seq.*)

"On petition of a party to an arbitration agreement . . . the court shall order the petitioner and the respondent to arbitrate the controversy . . . unless it determines that . . . [t]he right to compel arbitration has been waived by the petitioner . . ." (Code Civ. Proc., § 1281.2, subd. (a).) As the California Supreme Court has made clear, the catch-all category called "waiver" actually consists of at least four distinct legal defenses to the enforcement of an agreement to arbitrate. As discussed in *Platt Pacific, Inc. v. Andelson* (1993) 6 Cal.4th 307 (*Platt Pacific*), "[g]enerally, 'waiver' denotes the voluntary relinquishment of a known right. But it can also mean the loss of

¹ A certified English translation of the Arbitration Agreement is attached as Exhibit C to the Declaration of Bruce Taylor filed May 19, 2026. The Court finds that the Declaration of Mr. Taylor is sufficient to certify the English-language translation of the Agreement.

an opportunity or a right as a result of a party's failure to perform an act it is required to perform, regardless of the party's intent to abandon or relinquish the right....” (*Id.* at p. 315.) The *Platt Pacific* Court noted that one line of case law discusses “that a party may ‘waive’ its right to arbitrate by failing to timely demand arbitration. We conclude that those decisions use the word ‘waiver’ in the sense of the loss or forfeiture of a right resulting from failure to perform a required act.” (*Id.* at 315.) The Court discussed another line of cases addressing the question, “whether a party has abandoned its right to arbitration by conduct inconsistent with the exercise of the right” and noted that this question “is altogether different from the question of whether a condition precedent to the contractual right to arbitrate has occurred or has been legally excused.” (*Id.* at 318.)

The Court further elucidated this area of law in *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 583 (*Quach*). There, the Court held that “[i]n determining whether a party to an arbitration agreement has lost the right to arbitrate by litigating the dispute, a court should treat the arbitration agreement as it would any other contract, without applying any special rules based on a policy favoring arbitration. That is, courts should apply the same procedural rules that they would apply to any other contract.” (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 583 (*Quach*).) “[U]nder California law, a party may, as a result of its litigation conduct, lose its right to compel arbitration on various grounds” including estoppel, forfeiture, and timeliness. (*Ibid.*)

“To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it.” (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584 (*Quach*).)

The Court finds no evidence tending to show that Walsh intentionally relinquished or abandoned its right to arbitrate Plaintiff’s claims.

Plaintiff argues that a waiver may implied from Walsh’s: (1) initial 9-month delay in bringing its first motion to compel arbitration; and (2) its subsequent 5-month delay in bringing its second motion to compel arbitration. (See Opposition at 8:21-23.) Plaintiff argues that, pursuant to the holding in *St. Agnes v. Medical Center v. PacificCare of California* (2003) 31 Cal.4th 1187 (*St. Agnes*), “Courts routinely find waiver where a party delays in asserting arbitration rights and engages in litigation conduct inconsistent with arbitration.” (Opposition at 9:12-15.)

The *St. Agnes* analysis, however, is no longer the proper approach under controlling authority. (See *Quach, supra*, 16 Cal.5th at 583.) Rather, “[i]n ruling on a motion to compel arbitration, a court should separately evaluate each generally applicable state contract law defense raised by the party opposing arbitration. It should not lump distinct legal defenses into a catch-all category called ‘waiver.’” (*Id.* at 583-584.)

Plaintiff, through the Opposition, fails to discuss or argue any specific contract defense to enforcement of the arbitration agreement. (See Opposition at 8:4-10:4.) As such, Plaintiff fails to persuade the Court that any such defense bars enforcement based on Walsh’s delay. (See

Quantum Cooking Concepts, Inc. v. LV Associates, Inc. (2011) 197 Cal.App.4th 927, 934 [“Rules of Court rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party’s theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide”].)

Finally, Plaintiff contends that “Defendant’s motion to compel arbitration should be denied because Defendant failed to comply with the Agreement’s mandatory pre-arbitration dispute resolution procedure before seeking to compel arbitration. Under the plain language of the Agreement, the parties agreed that they would first attempt to resolve disputes informally and only thereafter submit unresolved disputes to arbitration.” (Opposition at 10:8-12.)

The Court finds no merit in the argument, particularly in light of the fact that it was *Plaintiff* who initiated the instant lawsuit. Plaintiff does not contend, let alone present evidence, that prior to doing so she complied with the “mandatory pre-arbitration dispute resolution procedure.” In this context, the Court does not find that any failure, by Walsh, to do so prior to seeking to compel Plaintiff to arbitrate her claims, constitutes or supports a finding of waiver.

3. Walsh Has Shown Good Cause for an Order Staying Proceedings Pending Resolution of the Arbitration

“If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies. . . . If the issue which is the controversy subject to arbitration is severable, the stay may be with respect to that issue only.” (Code Civ. Proc., § 1281.4 (Section 1281.4).)

Where, through arbitration, a plaintiff is found not to be an aggrieved employee under PAGA, that plaintiff may lack standing to assert Non-Individual PAGA Claims. (See *Rocha v. U-Haul Co. of California* (2023) 88 Cal.App.5th 65, 77-78 [“Once the Labor Code violations based on which a plaintiff seeks to qualify for PAGA standing have been finally adjudicated, the extent to which that adjudication prevents a plaintiff from qualifying for standing will depend on general principles of issue preclusion”]; see also *Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, 1124 [“If the arbitrator determines that [plaintiff] is not an aggrieved employee and the court confirms that determination and reduces it to a final judgment, the court would give effect to that finding, and [plaintiff] could no longer prosecute his non-individual claims due to lack of standing”].)

Based on the foregoing authority, the Court finds that Plaintiff’s status as an aggrieved employee is an issue involved in Plaintiff’s Non-Individual PAGA Claims. Because the Court, above, has ordered Plaintiff to arbitrate her individual PAGA claim, and because that arbitration will involve the question of whether Plaintiff is an aggrieved employee pursuant to PAGA, the Court is required to stay Plaintiff’s Non-Individual PAGA Claims pending resolution of the arbitration. (See Section 1281.4.)

Plaintiff argues that “the [Arbitration Agreement] contains no clause providing that representative PAGA claims will be stayed pending arbitration.” (Opposition at 12:1-2.) Plaintiff cites to no authority suggesting that such a stay is only permitted or appropriate where the parties have agreed thereto. The Court does not find that the lack of any agreement to the subject stay is controlling. (See discussion, *supra*; See also Section 1281.4 and *Rocha v. U-Haul Co. of California*, *supra*, 88 Cal.App.5th at 77-78.)

Finally, Plaintiff’s reliance on the holding in *Duran v. EmployBridge Holding Co.* (2023) 92 Cal.App.5th 59 (*Duran*), is misplaced. That case involved only a review of a determination that the arbitration agreement at issue excluded PAGA claims from its definition of arbitrable claims. (See *id.* at pp. 66-67.) The propriety of a stay pursuant to Section 1281.4 was not at issue in the action. Moreover, in *Duran*, the Court found that all PAGA claims – both individual and non-individual, were excluded from the subject agreement’s definition of arbitral claims. As discussed above, the Arbitration Agreement (at issue here) excludes only Non-Individual PAGA Claims.

D. CONCLUSION

Based on the foregoing, the Motion is GRANTED. Plaintiff’s Non-Individual PAGA Claims are ordered severed from her other claims. Plaintiff is ordered to arbitrate all of her claims, excepting her Non-Individual PAGA Claims. The action is STAYED pending resolution of said arbitration.

.....
Shahbaz Shahabi v. Shahin Shahabi et al

25CV002685

[1] DEMURRER TO CROSS-COMPLAINT

TENTATIVE RULING: The Demurrer is SUSTAINED WITH LEAVE TO AMEND. Defendants are granted 10 days’ leave from notice of entry of order to amend this cross-complaint in accordance with this rule. (See Rules of Court, rule 3.1320(g).) Plaintiff is directed to provide notice of entry of order.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTER

Plaintiff/Cross-Defendant Shahbaz Shahabi (“Plaintiff”) demurs, pursuant to Code of Civil Procedure section 430.10, subdivision (e) and (f),² to the Cross-Complaint of Defendants/Cross-Complainants Shahin Shahabi, Anna Shahabi, and Smith-Anderson Enterprises, Inc. (collectively, “Defendants”). The grounds for the demurrer are that the Cross-Complaint is uncertain, ambiguous, and unintelligible, and the First through Ninth Causes of Action fail to state facts sufficient to constitute a cause of action and are barred by the applicable statutes of limitations under sections 338, subdivision (d) and 340.6, Business & Professions Code section 17208, and *Snyder v. California Ins. Guarantee Assn.* (2014) 229 Cal.App.4th 1196. (Notice of Demurrer, pp. 1-2.)

B. LEGAL DISCUSSION

The Cross-Complaint alleges nine causes of action. The First through Fourth Causes of Action allege Rescission as to separate contracts—a 10/1/2008 Settlement Agreement, 11/18/2018 Shahin Real Property Agreement, 2/7/2019 Family Real Property Agreement, and 11/19/2018 Falcon One Agreement, respectively. The Fifth Cause of Action asserts Breach of Fiduciary, Sixth Cause of Action asserts Legal Malpractice, Seventh Cause of Action asserts Negligence, Eighth Cause of Action asserts Declaratory Relief, and Ninth Cause of Action asserts Violation of Business and Professions Code section 17200.

1. Statute of Limitations and Delayed Discovery Allegations

Plaintiff represents the applicable statutes of limitations as to each cause of action as follows: 3-4 years for the First through Fourth Causes of Action for Rescission and Breach of Fiduciary Duty, 1 year for Sixth Cause of Action for Legal Malpractice, 2 years for Seventh Cause of Action for Negligence, 4 years for the Ninth Cause of Action for Violation of Business and Professions code section 17200, and 2-4 years for the Eighth Cause of Action which is derivative of the underlying claims’ statutes of limitations. While Plaintiff’s Memorandum provides no discussion of the Fifth Cause of Action for Breach of Fiduciary Duty in its discussion of the statute of limitations, Plaintiff’s Notice of Demurrer cites to section 338, subdivision (d) (i.e., three years) for the Fifth Cause of Action.

Defendants only dispute Plaintiff’s representation of the statute of limitations for the First through Fourth Causes of Action, contending that they are subject to a four-year statute of limitations under section 337, subdivision (c). The Court agrees.

Other than providing the applicable statutes of limitations, Plaintiff provides no discussion or analysis as to the date on which each cause of action accrued, which is necessary to show the causes of action are time barred. Furthermore, Plaintiff fails to address or apply the standard for a defense of statute of limitations *on a cross-complaint*, which is that the date of the filing of the *complaint* controls and tolls the statutes. (See *Paredes v. Credit Consulting Services, Inc.* (2022) 82 Cal.App.5th 410, 429 [“[t]he statute of limitations is not available to plaintiff as to defendants’ counterclaim if the period has not run on it at the time of commencement of plaintiff’s action even though it has run when the counterclaim is pleaded” and this applies to all crossclaims, compulsory or not].)

² All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

Despite Plaintiff's omissions, Defendants contend that Plaintiff's position is that the accrual date is the date the subject contracts were executed (between 2008 and 2019). Defendants dispute that position, arguing that the correct accrual date is the date on which Defendants learned of the breach, which they contend is alleged in the Cross-Complaint as no sooner than February 2022.

Where a plaintiff/cross-complainant relies on the "discovery rule" to avoid a statute of limitations defense, the complaint/cross-complaint must specifically plead facts that show (i) the time and manner of discovery, and (ii) plaintiff's inability to have made an earlier discovery despite reasonable diligence. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 C4th 797, 808; *E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 CA4th 1308, 1324; *Czajkowski v. Haskell & White, LLP* (2012) 208 CA4th 166, 174-175.)

Here, Defendants do not cite to, or quote, the Cross-Complaint in support of their contention that February 2022 was the delayed discovery date or date of breach for each cause of action. The Court has reviewed the Cross-Complaint and finds that its only allegation as to February 2022 does not clearly or sufficiently support such contention. (See Cross-Complaint, ¶¶ 25-26.) Moreover, the *only* dates clearly alleged in the Cross-Complaint for purposes of a statute of limitations analysis are the dates when the subject contracts were executed. As the execution dates were between 2008 and 2019, and the Complaint was filed in December of 2025, all causes of action appear to be time barred.

Thus, the demurrer on the grounds that all causes of action are time-barred is SUSTAINED WITH LEAVE TO AMEND to the extent Defendants can clearly allege facts showing that the dates of breach or the delayed discovery dates of breach are within the statute of limitations.

2. Sufficiency of Allegations Constituting Each Cause of Action

Although the Court need not address this additional ground raised by Plaintiff in light of the finding above, the Court elects to do so, as it finds merit in Plaintiff's argument. It is the Court's hope that the analysis set forth below will guide the drafting of Defendants' First Amended Cross-Complaint.

A complaint must contain "facts constituting the cause of action." (Code Civ. Proc., § 425.10, subd. (a)(1).) A demurrer is treated as "admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court must "construe the allegations of a complaint liberally in favor of the pleader." (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) The Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) Because "[a] demurrer tests only the legal sufficiency of the pleading . . . the question of plaintiff's ability to prove the [] allegations, or the possible difficulty in making such proof does not concern the reviewing court." (*Comm. on Children's Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

i. *Rescission (First Through Fourth Causes of Action)*

Plaintiff argues that the rescission causes of action fail to state sufficient facts because the Cross-Complaint does not allege that Defendants tendered, or have the ability to restore, the benefits received and, instead the Cross-Complaint alleges ratification of the contract which bars rescission. (Civ. Code, § 1691; *Neet v. Holmes* (1944) 25 Cal.2d 447; *Saret-Cook v. Gilbert, Kelly, Crowley & Jennett* (1999) 74 Cal.App.4th 1211; *Brahim v. FordMotor Co.* (1989) 214 Cal.App.3d 878.) Further, Plaintiff argues that the Cross-Complaint fails to include supporting facts to show how each agreement was entered into by “mistake, duress, menace, fraud, or undue influence.” Relatedly, Plaintiff argues that the Cross-Complaint is fatally uncertain because it lumps all four contracts, time periods, and theories together without distinguishing which facts apply to which contract, and which conduct supports which claim.

In Opposition, Defendants argue that they need not provide further facts of “mistake, duress, menace, fraud, or undue influence” because undue influence is presumed by Defendants’ alleging that Rules of Professional Conduct, rule 1.8.1 and Probate Code 16004 were violated. Defendants further argue that they need not allege restoration because, based on facts outside the four corners of the Cross-Complaint, Plaintiff provided nothing of independent value for the benefits of the agreements.

As to the restoration argument, none of the authority cited by Plaintiff requires an allegation of tender or restoration to be included in a complaint, and whether or not a party has ratified a contract is a question of fact not proper on demurrer. Civil Code section 1691 provides that “[w]hen notice of rescission has not otherwise been given or an offer to restore the benefits received under the contract has not otherwise been made, the service of a pleading in an action or proceeding that seeks relief based on rescission shall be deemed to be such notice or offer or both.” This supports that no such allegation of restoration must be expressly alleged in the Complaint.

As to Plaintiff’s argument that there are not enough supporting facts alleged, the Court notes that these causes of action contain barebone allegations. Specifically, all four of these causes of action contain the same two substantive paragraphs in the Cross-Complaint: first, that the respective contract “was entered into by mistake, duress, menace, fraud, or undue influence exerted by [Plaintiff] over Shahin”; and, second, that the respective contract “should be rescinded under Cal. Civ. Code § 1689(b).” (Cross-Complaint, 5:4-6:5.) This is uncertain.

Based on the foregoing, the demurrer on the grounds that the First, Second, Third, and Fourth Causes of Action fail to allege facts sufficient to state a cause of action is SUSTAINED WITH LEAVE TO AMEND.

ii. *Tort Claims (Fifth Through Seventh Causes of Action)*

Plaintiff argues that these causes of action contain legal conclusions without any ultimate facts and that they are duplicative of one another. Specifically, Plaintiff contends the Cross-Complaint fails to plead the scope of representation and engagement as counsel for each of the transactions.

In Opposition, Defendants appear to concede that the basis of all causes of action, including these three tort claims, is “[Plaintiff’s] violations of the Rules of Professional Conduct, made actionable by the Probate Code.”

Defendants’ concession suggests that the Breach of Fiduciary Duty, Legal Malpractice, and Negligence claims are asserted against Plaintiff in his capacity as Defendants’ attorney. This, in turn, suggests that these three causes of action assert the same duty and breach by Plaintiff.

However, duplicative pleading, “if it justifies any judicial intervention at all, is ordinarily dealt with most economically at trial, or on a dispositive motion such as summary judgment.” (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 890; *R.L. v. Merced City School Dist.* (2025) 114 Cal.App.5th 89, 119 [reversing an order sustaining the demurrer and adopting *Blickman*’s holding that “[r]edundancy, however, is not enumerated as one of the statutory grounds on which a demurrer may be sustained”].)

The Court finds that the Fifth and Sixth Causes of Action contain sufficient ultimate facts. However, the Seventh Cause of Action for Negligence does not. It merely regurgitates the general elements for negligence with no case-specific details as to duty or breach.

Based on the foregoing, the demurrer to the Fifth and Sixth Causes of Action on the ground that they fail to allege facts sufficient to state a cause of action is **OVERRULED**. The demurrer to the Seventh Cause of Action on that ground is **SUSTAINED WITH LEAVE TO AMEND**.

iii. *Declaratory Relief (Eighth Cause of Action)*

Plaintiff argues that, because the other causes of action fail by this demurrer, so too does the declaratory relief cause of action, which is entirely derivative of the other causes of action.

The Court finds that this cause of action is derivative of the First through Fourth Causes of Action for Rescission. (Cross-Complaint, ¶¶ 22-23.) Because the demurrer as to those causes of action has been sustained with leave to amend, the demurrer as to this entirely-derivative cause of action is also **SUSTAINED WITH LEAVE TO AMEND**.

iv. *Business & Professions Code Section 17200 (Ninth Cause of Action)*

Plaintiff argues that a claim under this code requires Defendants to allege (1) a violation of a separate law, and (2) that they suffered an injury in fact and a loss of money or property caused by the alleged unfair competition. Plaintiff argues that a violation of Rules of Professional Conduct against attorney self-dealing is not a sufficient predicate violation.

Defendants cite to *People ex rel. Herrera v. Stender* (2012) 212 Cal.App.4th 614, 632 to support that this cause of action can be based on violations of Rules of Professional Conduct. Moreover, Defendants argue that the cause of action properly alleges they suffered an injury because it alleges: “as a direct result of [Plaintiff’s] business practices, [Defendants] paid money to [Plaintiff].”

In Reply, Plaintiff disputes Defendants’ argument but without citations to any authority.

The Court finds that *Stender* supports a UCL claim “using violation of the Rules of Professional Conduct as a measure of the unlawful practice” (see *id.* at 632), and it finds that the Cross-Complaint sufficiently alleges damages.

Based on the foregoing, the demurrer as to the Ninth Cause of Action on the ground that it fails to allege facts sufficient to state a cause of action is OVERRULED.

[2] MOTION TO STRIKE CROSS-COMPLAINT

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff and Cross-Defendant Shahbaz Shahabi (“Plaintiff”) moves, pursuant to Code of Civil Procedure sections 435 and 436,³ for an order striking improper portions of the Cross-Complaint, including seven paragraphs, three causes of action (Second, Third, and Fourth Causes of Action for Rescission of Shahin Real Property Agreement, Family Real Property Agreement, and Falcon One Agreement, respectively), and all references to “Real Property Agreements” and “Falcon One Agreement.” (Notice of Motion, pp. 1-2.) The motion is made on the grounds that the Cross-Complaint improperly injects irrelevant, unrelated, and prejudicial allegations concerning out-of-state contracts that bear no relationship to the claims asserted in the Complaint.

Pursuant to Code of Civil Procedure section 435, “[a]ny party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof” (§ 435, subd. (b)(1).) The court has authority to “[s]trike out any irrelevant, false, or improper matter inserted in any pleading” and to “[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (*Id.*, at § 436.) On a motion to strike, the court must read the complaint as a whole, considering all parts in their context, and must assume the truth of all well-pleaded allegations. (*Courtesy Ambulance Serv. V. Sup. Ct.* (1992) 8 Cal.App.4th 1504, 1519.) The court is not concerned with

³ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

whether the plaintiff will be able to prove the facts alleged in the complaint. (*Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1061.)

As an initial matter, the Motion to strike the Second, Third, and Fourth Causes of Action is DENIED on the grounds that a motion to strike is not the appropriate method for attacking an entire cause of action, as that is the function of a demurrer.

With respect to the remainder of the Motion, Defendants argue in Opposition that the out-of-state contracts support his causes of action in the Cross-Complaint and, as alleged in the Cross-Complaint, those contracts are part of the same continuous course of conduct by the same attorney against the same client and they arose from the same attorney-client relationship that produced the Settlement Agreement, which is the subject of the Complaint.

The Court, assuming the truth of all well-pleaded allegations in the Cross-Complaint, as it must, does not find the out-of-state contracts irrelevant or unrelated to the causes of action asserted therein.

Thus, the Motion is DENIED.

.....
In The Matter of Andrew Johannes Spaulding

26CV000480

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

.....
Thomas Kensok et al v. Alison A. Barstad

26CV000834

MOTION TO VACATE STAY OF PROCEEDINGS

TENTATIVE RULING: The matter is CONTINUED to July 9, 2026, at 8:30 a.m. in Dept. A to allow Plaintiffs to file and serve, no later than June 25, 2026, proof that they provided State Bar-approved notice, on the State Bar's mandated form, regarding Defendant's right to arbitrate fees, pursuant to Business & Professions Code section 6201, subdivision (a), and Rules of State Bar, rule 3.501(B).

Plaintiffs Synergist Law, P.C. and Law Offices Of Thomas Kensok (collectively, "Plaintiffs") move, pursuant to Business and Professions Code sections 6200-6206 and Code of Civil Procedure section 1281.2, for an order: (1) Overruling Defendant's Notice of Stay of Proceedings (Judicial Council Form CM-180) filed on May 4, 2026; (2) Vacating any stay of proceedings imposed or claimed; (3) Finding that Defendant Alison A. Barstad waived her right to mandatory fee arbitration by filing her Answer on May 4, 2026, before service of her Request

for Arbitration upon Plaintiffs was perfected on May 8, 2026; and (4) Ordering this action to proceed to determination on the merits.⁴

Plaintiffs failed to provide adequate notice of the hearing date. (See Code Civ. Proc., §§ 1005, subd. (b) and 1010.6, subd. (a)(3)(B).) However, Defendant waived any objection to the defect by failing to raise such objection and by submitting opposition papers addressing the substance of Plaintiffs' motion. (See *Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697, quoting *Tate v. Super. Ct.* (1975) 45 Cal.App.3d 925, 930.)

A prerequisite to the relief requested by Plaintiffs is that Plaintiffs' counsel "provide[d] [Defendant] with the State Bar-approved notice regarding [Defendant's] right to arbitrate Fees..." (Rules of State Bar, rule 3.501(B); see also § 6201, subd. (a).) "The written notice shall be in the form that the board of trustees prescribes, and shall include a statement of the client's right to arbitration under this article." (§ 6201, subd. (a).) The State Bar-approved notice form is therefore a mandatory form. Indeed, the form is available and downloadable from the State Bar website: https://www.calbar.ca.gov/sites/default/files/2025-09/2013_NoticeofClientsRightstoArb-Mar2013.pdf.

The Court must make this affirmative finding—that Plaintiffs' counsel provided the State Bar-approved Notice to Defendant—before it can turn to the inquiry of Defendant's waiver of arbitration. (See § 6201, subd. (b) ["[Defendant's failure to request arbitration] prior to the filing of an answer or equivalent response *shall be deemed a waiver of the client's right to arbitration under the provisions of this article if notice of the client's right to arbitration was given pursuant to subdivision (a).*"] [Emphasis added]; Rules of State Bar, rule 3.502(A)(3) ["A Client's right to request or maintain Fee Arbitration is waived *if ... the Client receives the State Bar-approved notice regarding a Client's right to arbitrate Fees* but does either of the following before submitting a Request for Arbitration...."] [Emphasis added].)

Plaintiffs' Motion contends that they "served Defendant with the Notice of Client's Right to Fee Arbitration pursuant to section 6201(a)." (Memorandum, 5:1-2.) Plaintiffs do not submit evidence of the "Notice of Client's Right to Fee Arbitration" which was purportedly served on Defendant. Defendant does not dispute it in Opposition. (See Opposition, 2:19-22.) However, the only evidence of the notice that was purportedly served on Defendant is provided with Defendant's Opposition, and gives the Court pause as to whether Plaintiffs provided the State Bar-approved Notice Form to Defendant.

Specifically, Defendant attaches, as Exhibit A, "a true and correct copy of the Notice of Client's Right to Arbitration." (Declaration of Alison A. Barstad ISO Opposition, ¶ 6 ("Def's Opp. Decl.")). Exhibit A only contains emails between the parties, including one from Plaintiffs' counsel on January 12, 2026, at 2:46 PM, wherein Plaintiffs' counsel states: "Because you have now formally asserted a fee dispute, I am providing you with the Notice of Client's Right to Fee Arbitration pursuant to the State Bar rules." (*Id.*, Exh. A.) The email continues with a couple sentences regarding the arbitration, but does not refer to the governing statute. (*Ibid.*) There is no indication that any form was attached to this email, and it is unclear whether any form was sent under separate cover.

⁴ All subsequent statutory references are to the Business & Professions Code unless otherwise specified.

Because Plaintiffs' requested relief is contingent upon Plaintiffs' compliance with the abovementioned notice requirements, and because Plaintiffs did not present any evidentiary support to establish their compliance and, instead, the only evidence presented establishes non-compliance, the Court is not authorized to grant the requested relief on the present record. However, given that Defendant does not raise any defect with the notice she was provided, and because Plaintiffs assert (albeit without evidentiary support, see Memorandum, 4:9-10, 5:1-2) that they provided notice in accordance with section 6201, subdivision (a), the Court elects to grant a continuance to allow Plaintiffs an opportunity to serve and file proof of such compliant notice.

.....
In The Matter of Joshua Zachary Coundjeris

26CV000901

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: An Order to Show Cause for Change of Name (OSC) was entered in this matter on April 28, 2026. Petitioner is required to publish the OSC in the manner set forth in Code of Civil Procedure, section 1277. However, there is no proof of publication (POP) in the Court's file. If one is filed before the hearing, the petition will be GRANTED without need for appearance.

If no proof of publication is filed, the matter will be CONTINUED to June 30, 2026, at 8:30 a.m. in Dept. B to provide any publisher time to file the POP.